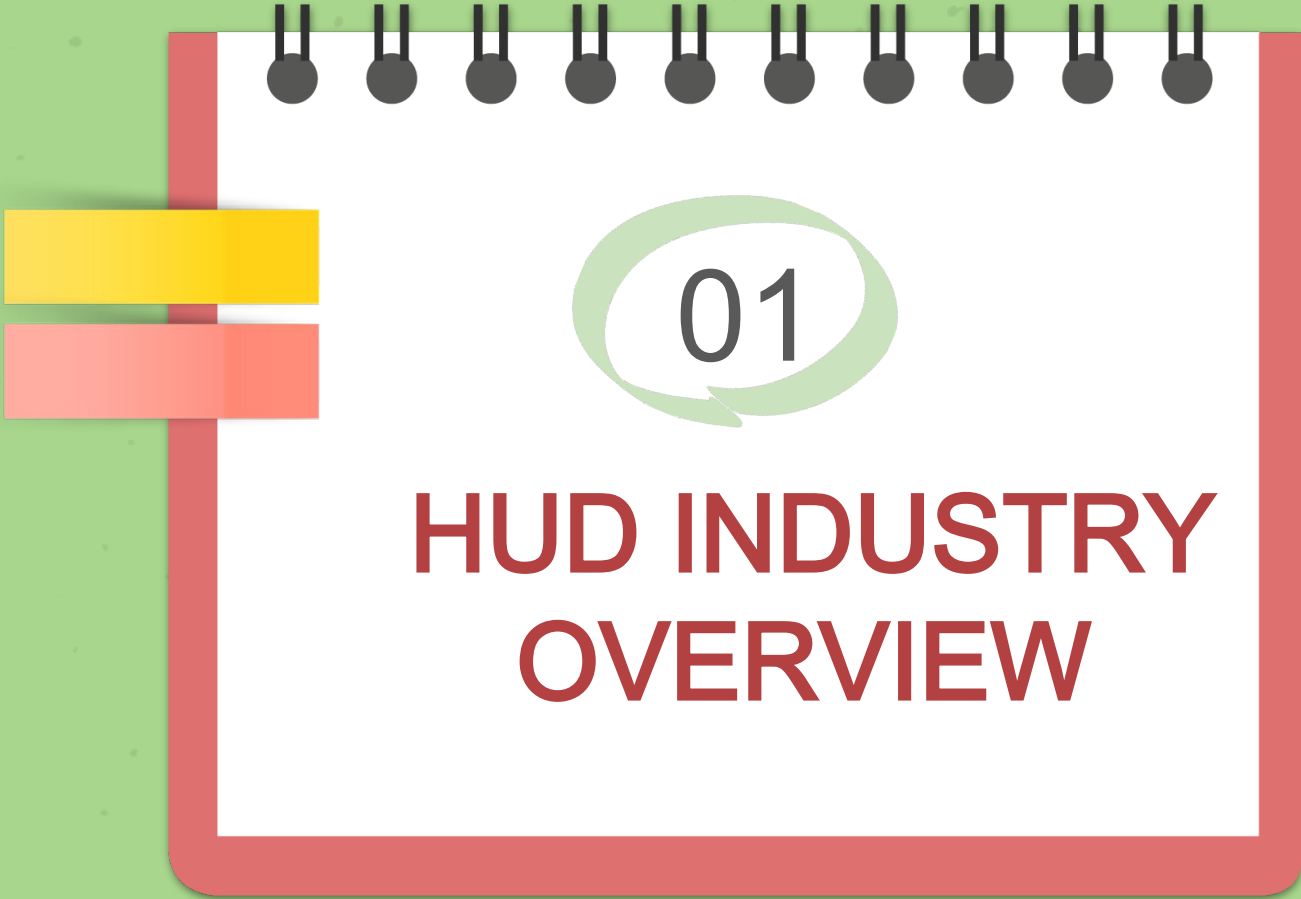


A spiral-bound notebook with a white cover and lined pages is the central focus. The notebook is open to a page with horizontal lines. On the left side, the spiral binding is visible. Several sticky notes are attached to the notebook: a yellow one at the top left, a grey one below it, and a larger yellow one on the bottom left. On the right side, there are two rectangular sticky notes, one orange and one yellow. The background is a solid green color with a subtle pattern of small white dots. The text "ONESITE AFFORDABLE PRODUCT TRAINING" is written in large, bold, red capital letters across the center of the notebook page. There are also some small yellow and orange brush strokes on the page.

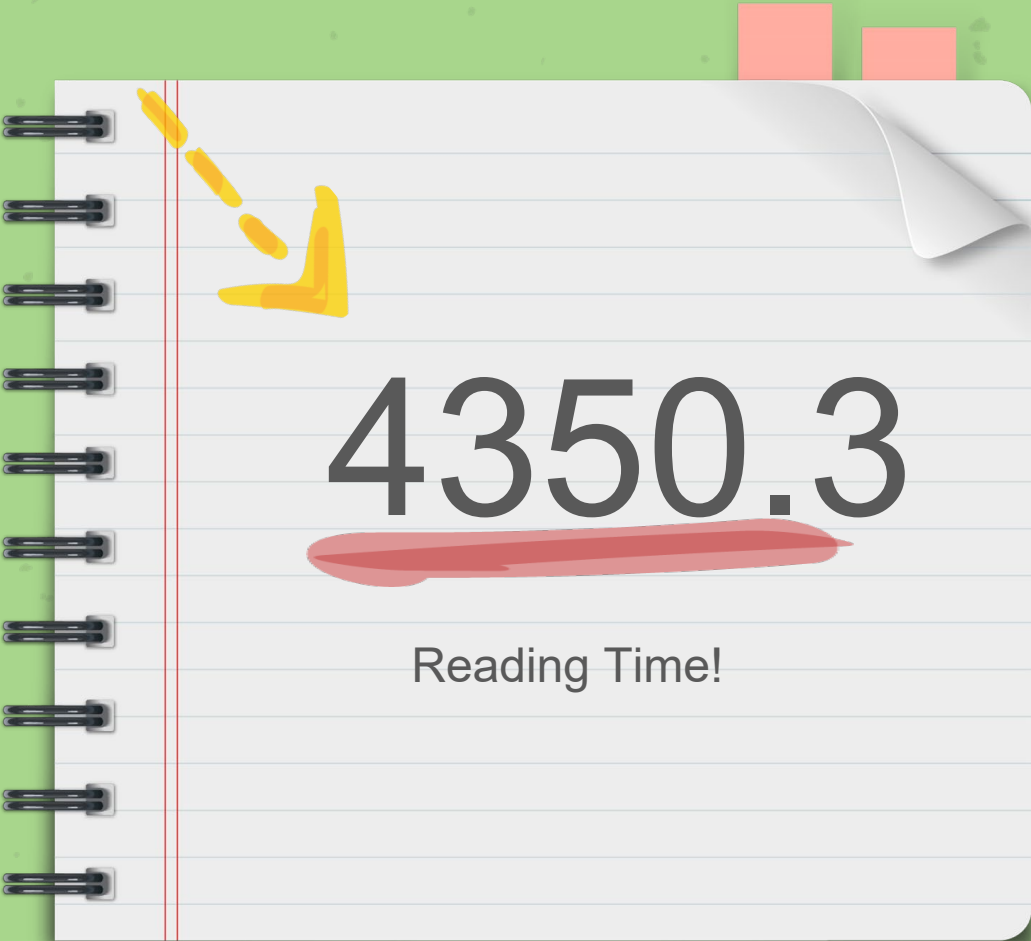
ONESITE AFFORDABLE PRODUCT TRAINING

Welcome!

A graphic of a spiral-bound notebook with a white page, a red cover, and a green background. The page has a spiral binding at the top. On the left side, there are two horizontal tabs, one yellow and one pink. In the center of the page, the number '01' is displayed inside a green circular arrow. Below this, the text 'HUD INDUSTRY OVERVIEW' is written in a bold, red, sans-serif font.

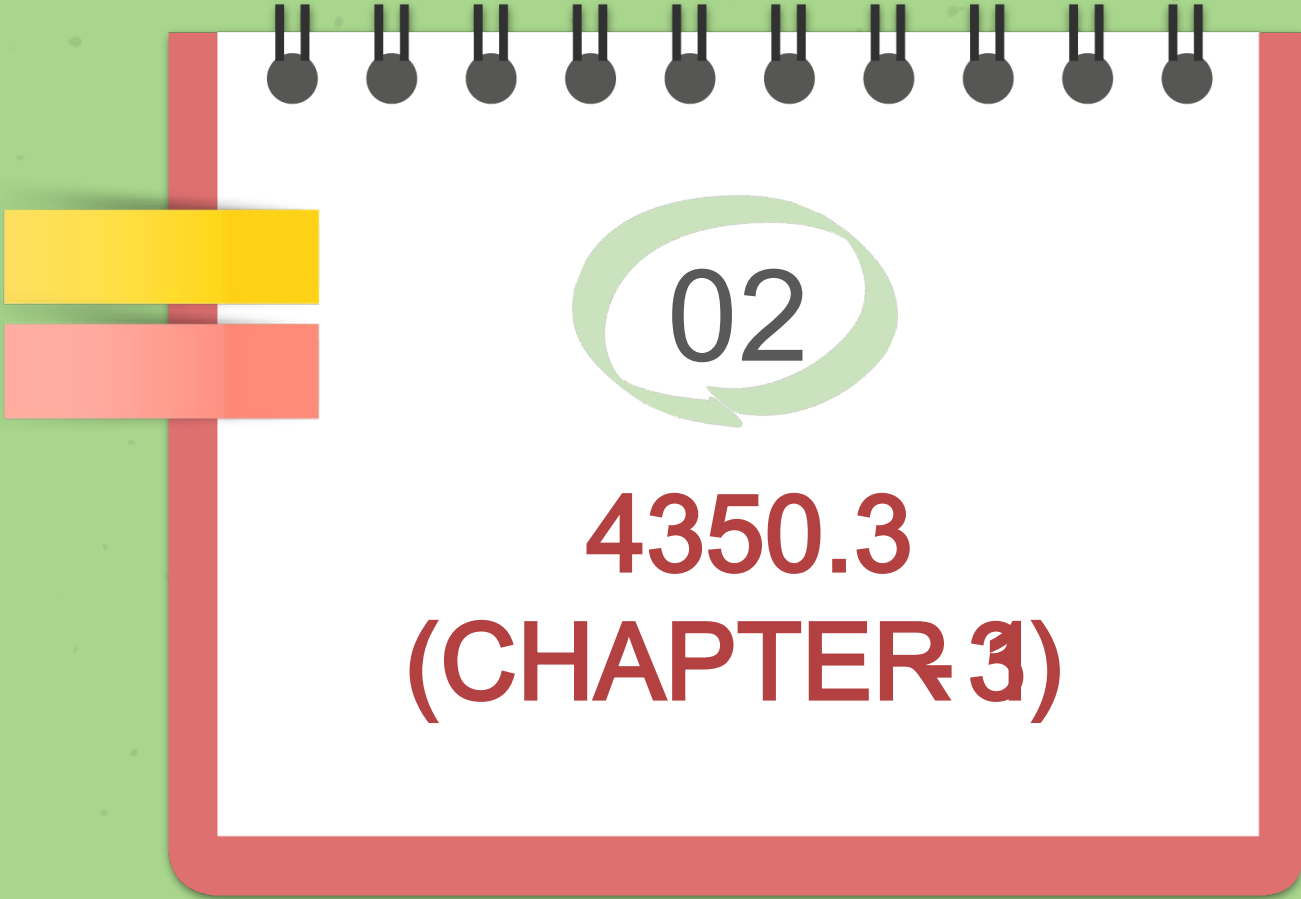
01

HUD INDUSTRY OVERVIEW



4350.3

Reading Time!

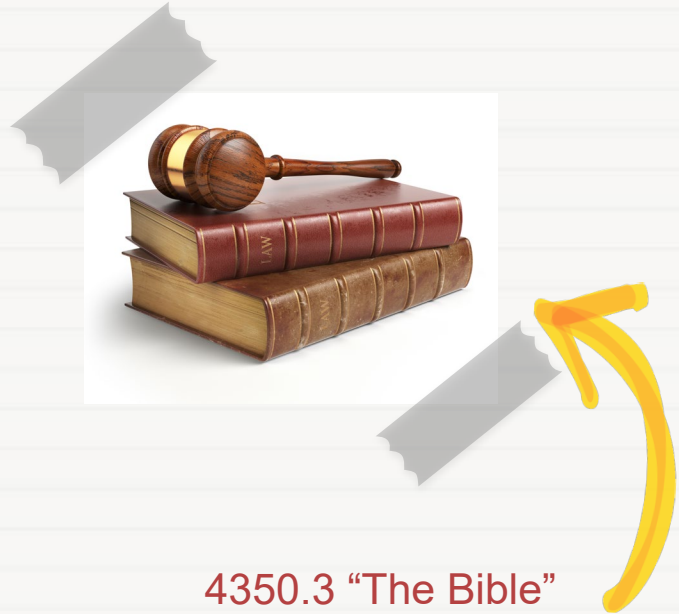


02

4350.3
(CHAPTER 3)

Objective:

- Classify the rules under 4350
- State major compliance rules we follow
- Use the learning to better assist our client



4350.3 "The Bible"

Income Limits

- **Income Eligibility** -
Except under limited circumstances, in order for an applicant to be eligible for occupancy, the applicant family's annual income must not exceed the applicable income limit. This limit depends upon the type of subsidy and family size.

- *Paragraph 5 - 4* Annual income is the amount of income that is used to determine a family's eligibility for assistance.
- All amounts, monetary or not, that go to or are received on behalf of the family head, spouse or co-head or any other family member; or All amounts anticipated to be received from a source outside the family during the 12-month period following admission or annual recertification effective date.
- Annual income includes all amounts that are not specifically excluded by regulation.

- **Establishing Income Limits** - the income limit for one city or county is likely to be very different from the income limit for another city or county .

- **Timing of Income Eligibility Determinations** - Owners determine income eligibility prior to approving applicants for tenancy. Owners are required to report the income status of each assisted tenant to HUD at least annually .

- **Program Income Limits** -

A family's eligibility for assistance is based on the income limit applicable to the type of housing assistance the family is to receive. A family may be income - eligible for one program but have too high an income for another program.

Figure 3-2: Income Limits

All of these income limits are based on the median income for a metropolitan statistical area (MSA). This table shows the four income limits as a percentage of median income in an MSA.

Income Limit	Median Income for the Area
BMIR income limit	95% of median income
Low-income limit	80% of median income
Very low-income limit	50% of median income
Extremely low-income limit	30% of median income

- **Income Limits and Family Size** - Income limits vary by family size. Income limits are published based on the number of persons in the household with increasingly higher income limits for families with more members. The owner must include all persons living in the unit except for live in aide and guest.

Figure 3-3: Income Limits by Program

Subsidy	Type of Income Limit
Section 8 (pre-1981)	Low, very low, and extremely low-income limit
Section 8 (post-1981)	Very low and extremely low-income limit
Section 236	Low-income limit
Rent Supplement	Low-income limit
Rental Assistance Payment (RAP)	Low-income limit
Section 202 without assistance	Low-income limit See paragraph 3-6.D.3 for exceptions
Section 202 with Section 8 Assistance	Pre-1981 Low, very low, and extremely low-income limit Post-1981 Very low and extremely low-income limit
Section 202 with Rent Supplement	Low-income limit
Section 202 PACs	Low-income limit
Section 202/811 PRACs, <u>except</u> those funded in FY1995	Very low-income limit
Section 202/811 PRACs funded in FY 1995	Low-income limit
Section 221(d)(3) BMIR	BMIR income limit

Determining the Applicable Income Limit and Eligibility for Assistance

1. After determining family size, the owner must calculate the family's annual income.
2. After determining family income, the owner must compare the family's annual income to the appropriate income limit for the program and family size.

3. Income - eligible families must have annual income that is less than or equal to the income limit for the family size.

4. Income - eligible families must also need the assistance. The amount the family would be required to pay using the applicable HUD rent formula must be less than the gross rent for the unit or market rent for Section 236 projects.

Restriction on Assistance to Noncitizens



By law, only U.S. citizens and eligible noncitizens may benefit from federal rental assistance.

Compliance with these rules ensures that only eligible families receive subsidy. These requirements apply to families making application to the property, families on the waiting list, and tenants.

Key Requirements

1. Assistance in subsidized housing is restricted to the following: U.S. citizens or nationals; and Noncitizens that have eligible immigration status.
2. All applicants for assistance must be given notice of the requirement to submit evidence of citizenship or eligible immigration status at the time of application.

All family members, regardless of age, must declare their citizenship or immigration status.

3. A mixed family —a family with one or more ineligible family members and one or more eligible family members—may receive prorated assistance, continued assistance, or a temporary deferral of termination of assistance.

Prorated Assistance - For

Section 8 assistance programs, the number of eligible people in the family divided by the total number of persons in the family determines the fraction. Then, this fraction is multiplied by the full assistance payment. The reduced assistance payment results in a revised tenant rent for the family.

FORMULA:

Tenant Rent= TTP - UA

Gross Rent= CR+UA

Assistance Payment= GR - TTP

*TTP means Total tenant
Payment

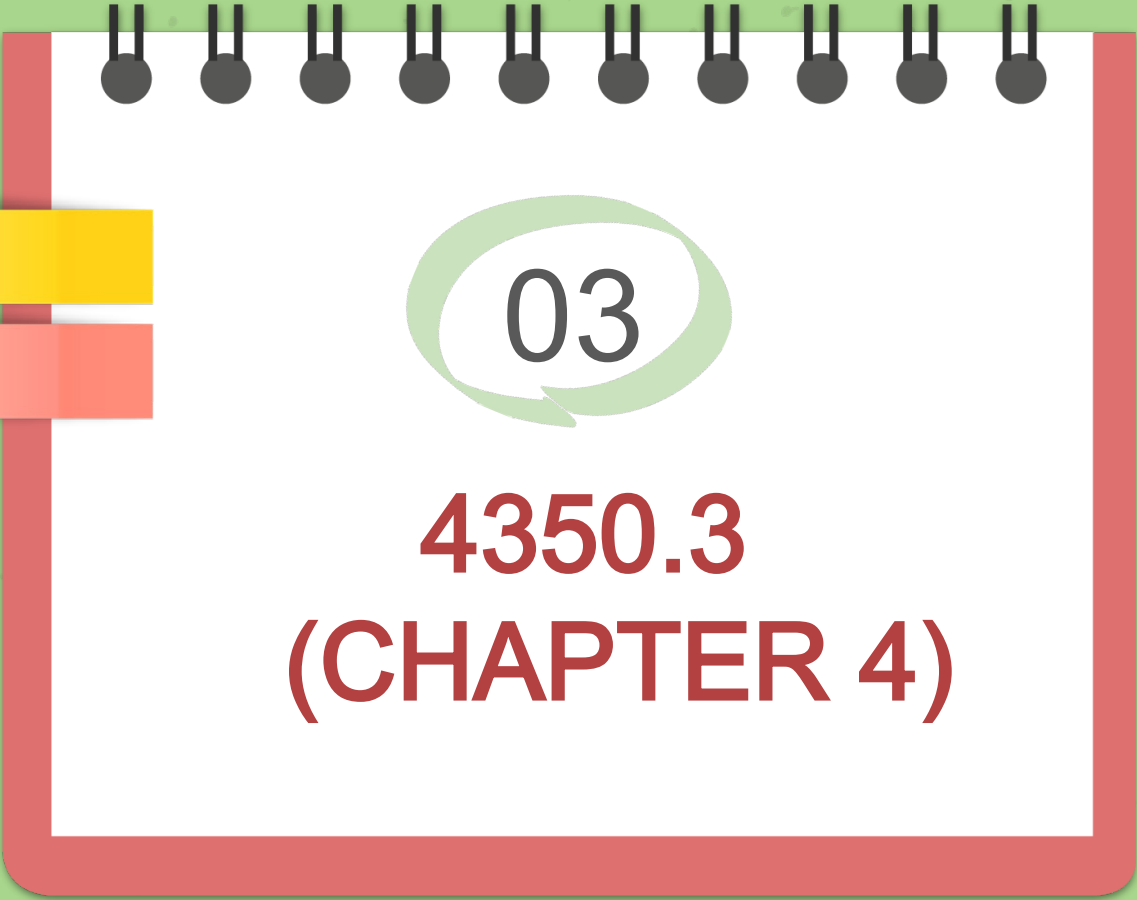
Income Limit

Low 80%, Very low 50%, Extremely Low 30%
Different for another city or county

Assistance to Noncitizens

Only U.S. citizens and eligible noncitizens may benefit from federal rental assistance
Prorated assistance= For Section 8, # of eligible divided by # of persons in the family multiplied by the full assistance payment.
 $AP \times 1/2 = \text{Prorated assistance}$



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03

4350.3
(CHAPTER 4)

Preferences

Applicants with preferences are selected from the waiting list and receive an opportunity for an available unit earlier than those who do not have a preference. Preferences affect only the order of applicants on the waiting list. They do not make anyone eligible who was not otherwise eligible, and they do not change an owner's right to adopt and enforce tenant screening criteria.

Figure 4-3: Summary of Preference Requirements by Property Type

Program	Statutory Preferences - Displacement	HUD Regulatory Preferences	Owner-Adopted Preferences
Section 221(d)(3) Section 221(d)(3) BMIR Section 221(d)(4)	✓ ✓ ✓		
Section 236		✓	
Section 8			
New Construction			✓
Substantial Rehabilitation			✓
State Housing Agency			✓
New Construction or Sub Rehab			✓
Rural Housing 515/8			✓
Property Disposition Set-Aside			✓
Section 202/8			✓
Loan Management Set-Aside (LMSA)			✓

Statutory, HUD, State, and Local Preferences

1. Statutory preferences - displacement

Properties must give preference to applicants who have been displaced by government action or a presidentially declared disaster.

2. HUD regulatory preferences

Owners must rank applicants according to the following criteria: Applicants eligible for RAP assistance, eligible to pay less than market rent under the Section 236 program, Applicants with income sufficient to pay the market rent approved for the property.

3. State and local preferences

Owners may apply preferences required by state or local law only if they are consistent with HUD and applicable civil rights requirements. For example, some states have laws that require owners to provide a preference for housing to military veterans. Owners must receive HUD approval in order to apply this locally legislated requirement. Owners must submit a written request to the HUD Field Office, describing the state or local laws requiring such preferences, requesting HUD concurrence on the preferences.

Owner- Adopted Preferences

1. Residency preferences

A residency preference provides applicants who live in a specific geographic area at the time of application a priority over nonresidents.

2. Working families

Owners may adopt a preference in selecting families from the waiting list for those families in which the head of household or spouse is employed.

3. Disability

Owners may adopt a preference to select families that include a person with a disability.

4. Victims of Domestic Violence, *Dating Violence or Stalking*

Owners may adopt a preference for admission of families that include victims of domestic violence, *dating violence or stalking*.

5. Specific groups of single persons

Owners may adopt a preference for single persons who are elderly, displaced, homeless or persons with disabilities over other single persons.

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Owners may adopt a preference for single persons who are elderly, displaced, homeless or persons with disabilities over other single persons.

Removing Names from the Waiting List

The owner must document removal of any names from the waiting list with the time and date of the removal. The tenant selection plan must include a written policy that describes when applicant names will be removed from the waiting list.

1. The applicant no longer meets the eligibility requirements for the property or program;
2. The applicant fails to respond to a written notice for an eligibility interview;
3. The applicant is offered and rejects two units in the property (or any number of unit offers as specified in the owner's written policies);
4. *The applicant fails to provide SSNs for all household members.*
5. Mail sent to the applicant's address is returned as undeliverable; or
6. The unit that is needed – using family size as the basis – changes, and no appropriate size unit exists in the property.

Implementing Screening Reviews

Timing for Conducting Screening Reviews - All screening activities should occur prior to approval of tenancy.

Screening for Credit History - Owners may reject an applicant for a poor credit history, but owners must not reject an applicant for lack of a credit history.

Screening for Rental History - The most common method for assessing rental history is to ask for comments from the applicant's current and former landlords. When collecting information from landlords, it is important to collect objective information.

Screening for Housekeeping - Poor housekeeping habits might be described as those that create an unsafe or unhealthy environment, e.g., an uncontrolled accumulation of trash, which has led to roach infestation or poses a health danger to other residents.

Screening for Drug Abuse and Other Criminal Activity - HUD requires that owners develop tenant selection plans that contain prohibitions against the admission of applicants who are engaging or have engaged in drug abuse or criminal activity.

Preferences

Affect only the order of applicants on the waiting list. They do not make anyone eligible who was not otherwise eligible. Ex. Disability.

Removing Names from the Waiting List

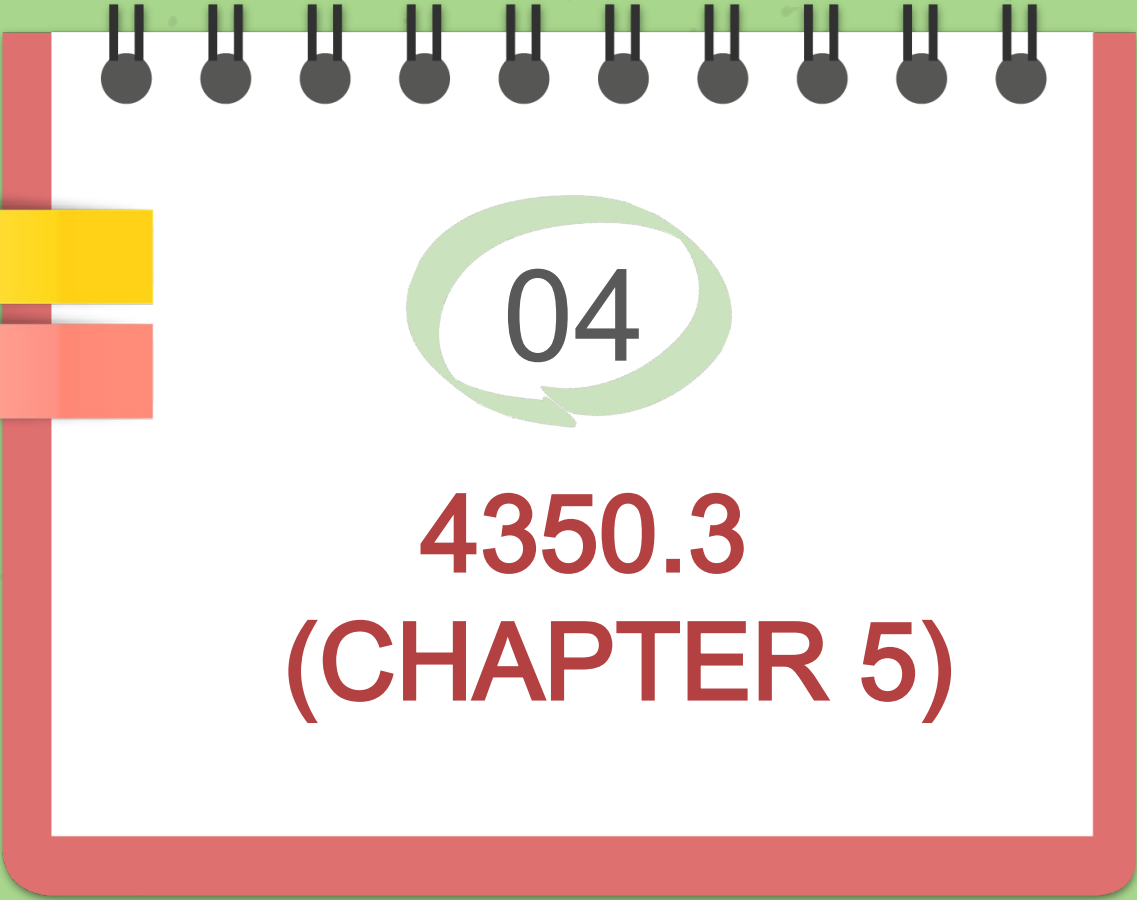
The applicant no longer meets the eligibility requirements, fails to respond to a written notice, rejects two units, fails to provide SSNs for all household members, Mail sent is returned as undeliverable.



Screening Reviews

Credit History, Rental History,
Housekeeping, Drug Abuse and Other Criminal
Activity



A graphic of a spiral-bound notebook with a white page, a red cover, and a green background. The page has a spiral binding at the top. On the left side, there are two horizontal tabs, one yellow and one pink. In the center of the page, the number '04' is displayed in a large, dark grey font, enclosed within a light green oval with a circular arrow around it. Below this, the text '4350.3' and '(CHAPTER 5)' is written in a bold, dark red font.

04

4350.3
(CHAPTER 5)

Calculating Income from Assets

Calculating Income from Assets When Assets Total \$5,000 or Less

If the total cash value of all the family's assets is \$5,000 or less, the **actual income** the family receives from assets is the amount that is included in annual income as income from assets.

Assets Total \$5,000 or Less	Actual income
Assets Exceed \$5,000	Imputed Income

Example – Use Actual Income from Assets When Total Net Family Assets are \$5,000 or Less

Type of Asset	Cash Value	Actual Yearly Income
<i>Certificate of Deposit</i> \$1,000 withdrawal fee \$50 interest @ 4%	\$950	\$40
<i>Savings Account</i> \$500 interest @ 2.5%	\$500	\$13
<i>Stock</i> \$300 Not paying dividends	\$300	\$0
Total	\$1,750	\$53

The total cash value of the family's assets is \$1,750. Therefore, the amount that is added to annual income as income from assets is the actual income earned or \$53.

Calculating Income from Assets When Assets Exceed \$5,000

When net family assets are more than \$5,000, annual income includes the greater of the following: Actual income from assets; or Imputed income from assets.

Imputed Income= Multiply the amount entered in Total Cash Value of Assets by the HUD Passbook Rate of .06% and enter the amount.

Example – Determining Income from Assets When Net Family Assets Exceed \$5,000

Type of Asset	Cash Value	Actual Yearly Income
Checking Account (non-interest bearing)	\$455	\$0
Savings Account (interest at 2.5%)	\$6,000	\$150
Stocks (not paying dividends this year)	\$3,000	\$0
Total	\$9,455	\$150

Total cash value of assets is greater than \$5,000. Therefore, it is necessary to compare the actual income from assets to the imputed income from assets.

The total cash value of asset (\$9455) is multiplied by .06% to determine the imputed income from assets.
 $\$9455 \times .006 = \5.67
\$150 is greater than \$5.67

Calculating Adjusted Income



Total Annual Income - Total Deductions = Adjusted Income

Dependent Deduction - A family receives a deduction of **\$480 for each dependent**.

Dependents are children under the age of 18 (excluding Foster children), and other family members over the age of 18, who are full - time students or disabled.

Child Care Deduction -

Childcare expense incurred that enables a family member to work, attending school or looking for work. Only expenses incurred for the care of children, including Foster children, who are under the age of 13, can be included .

Deduction for Disability

Assistance Expense - The anticipated amount the family expects to pay for qualifying attendant care and auxiliary apparatus required for employment . This enables a family member 18 years of age or older, including the family member who is a person with disabilities, to be employed. This deduction is equal to the amount by which the cost of the care attendant or auxiliary apparatus exceeds 3% of the family's annual income .

Disability Expense - 3% of Income = Disability Deduction

Medical Expense Deduction -

The medical expense deduction is permitted only for families in which the head, spouse, or co-head is at least 62 years old or is a person with disabilities (elderly or disabled families). The medical expense deduction is that portion of total medical expenses that exceeds 3% of annual income.

Elderly Family Deduction - An

elderly or disabled family is any family in which the head, spouse, or co-head (or the sole member) is at least 62 years of age or a person with disabilities. Each elderly or disabled family receives a \$400 family deduction. Because this is a family deduction each family receives only one deduction, even if both the head and spouse are elderly or disabled.

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The medical expense deduction is permitted only for families in which the head, spouse, or co-head is at least 62 years old or is a person with disabilities (elderly or disabled families). The medical expense deduction is that portion of total medical expenses that exceeds 3% of annual income.

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Calculating Tenant Rent

Unit Rent - The contract rent represents the amount of rent an owner is entitled to collect to operate and maintain the property.

Timeframe for Calculating Rent - Owners calculate rent at three points in time: prior to occupancy by an applicant, as part of an annual recertification, if a tenant reports a change in income, allowances, or family composition.

Tenant Rent - Tenant rent is the portion of the TTP the tenant pays each month to the owner for rent. Tenant rent is calculated by subtracting the utility allowance from the TTP. It is possible for tenant rent to be \$0 if the utility allowance is greater than the TTP.

Total Tenant Payment -
Utility Allowance = Tenant
Rent (What the resident will
"Really" pay.)

Assistance Payments - The assistance payment is the amount the owner bills HUD every month on behalf of the tenant. The assistance payment covers the difference between the TTP and the gross rent. It is the subsidy that HUD pays to the owner.

Contract Rent + Utility
Allowance (if any) - Total
Tenant Payment = Assistance
Payment

Utility Reimbursement

- When the TTP is less than the utility allowance, the tenant receives a utility reimbursement to assist in meeting utility costs. The tenant will pay no tenant rent. The utility reimbursement is calculated by subtracting the TTP from the utility allowance.

Tenant Rent – Utility Allowance

Section 8 Minimum Rent -

Tenants in properties subsidized through the Section 8 program must pay a minimum TTP of \$25.

Welfare Rent - In states or localities that have "As Paid" Public Benefit programs, the welfare rent is based on the actual amount a family pays for shelter and utilities, the welfare rent is the maximum amount permitted under the welfare rule for rent and utilities.

Welfare Rent will only apply to properties that are in States that use the welfare rent program: Guam, Hawaii, Idaho, Indiana, New Hampshire, New York, Oregon, Puerto Rico, South Dakota, & Vermont

Calculating Income from Assets

Assets Total \$5,000 or Less

→ Actual income

Assets Exceed \$5,000

→ Imputed Income

Imputed Income = Multiply the amount entered in Total Cash Value of Assets by the HUD Passbook Rate of .06% and enter the amount.

Greater of the following:

Actual income from assets;

or Imputed income from assets.



Review

Calculating Adjusted Income

Total Annual Income - Total Deductions = Adjusted Income

Dependent Deduction- \$480 for each dependent

Child Care Deduction- enables a family member to work, attending school or looking for work.

Deduction for Disability Assistance Expense- Disability Expense - 3% of Income = Disability Deduction

Medical Expense Deduction- Medical Expense - 3% of Income = Medical Deduction

Elderly Family Deduction- Each elderly or disabled family receives a \$400 family deduction

Calculating Tenant Rent

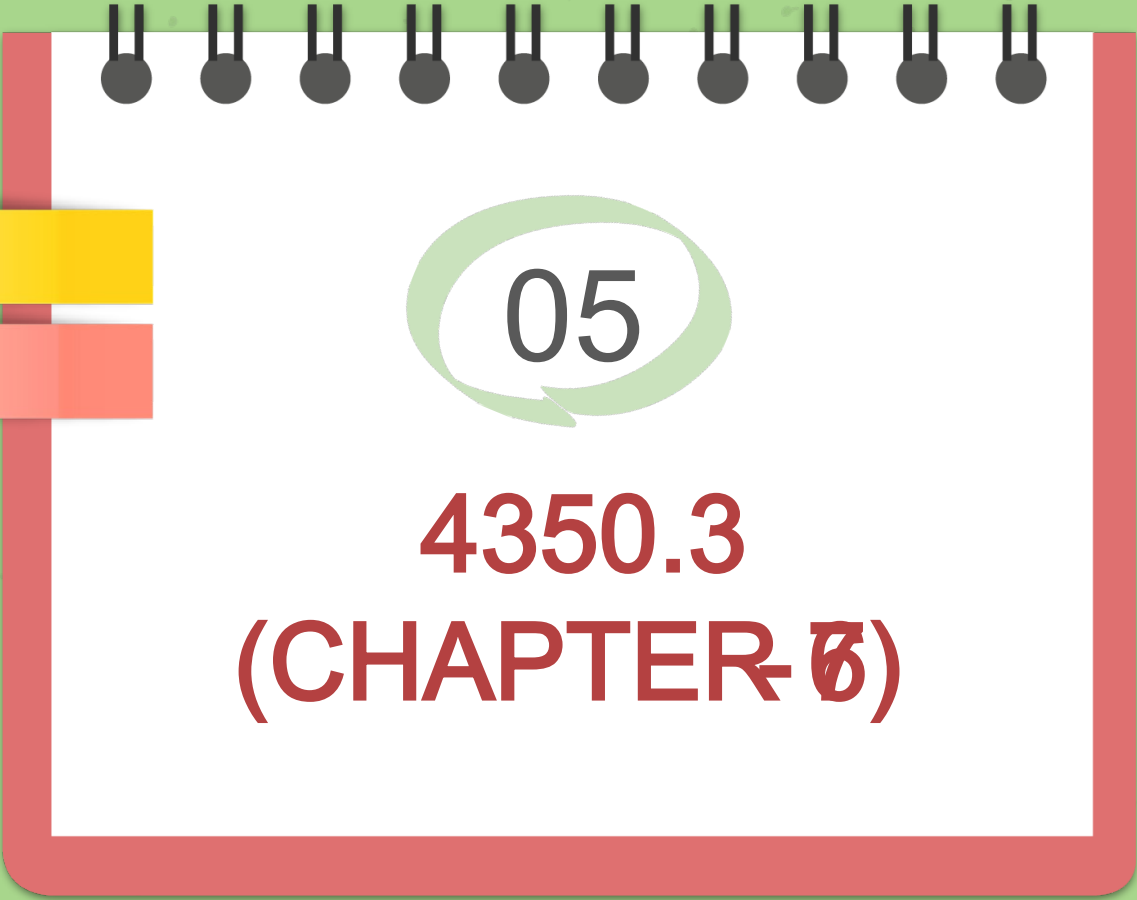
Total Tenant Payment – Utility Allowance = Tenant Rent (What the resident will “Really” pay.)

Contract Rent + Utility Allowance (if any) – Total Tenant Payment = Assistance Payment

Tenant Rent – Utility Allowance = Utility Reimbursement



Review

A graphic of a spiral-bound notebook with a white page, a red cover, and a green background. The spiral binding is at the top. On the left side, there are two horizontal rectangular tabs, one yellow and one pink. The number '05' is written in the center of the page, surrounded by a green circular arrow. Below it, the text '4350.3' and '(CHAPTER 6)' is written in red.

05

4350.3
(CHAPTER 6)

Security Deposits for Tenants Transferring to Another Unit

When a tenant transfers to a new unit, an owner may:

Transfer the security deposit ; or Charge a new deposit and refund the deposit for the old unit.

Figure 6-7: Amount of Security Deposit to Collect from Tenant

Program	Amount to Collect
Section 8 New Construction with AHAP executed <u>before</u> November 5, 1979	One month's total tenant payment
Section 8 Substantial Rehabilitation with AHAP executed <u>before</u> February 20, 1980	One month's total tenant payment
Section 8 State Agency with AHAP executed <u>before</u> February 20, 1980	One month's total tenant payment
Section 8 New Construction with AHAP executed <u>on or after</u> November 5, 1979 [24 CFR 880.608]	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 8 Substantial Rehabilitation with AHAP executed <u>on or after</u> February 20, 1980 [24 CFR 881.601]	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 8 State Agency with AHAP executed <u>on or after</u> February 20, 1980 [24 CFR 883.701]	The greater of: 1) One month's total tenant payment, or 2) \$50
RHS 515 with Section 8 [24 CFR 884.115]	Equal to one month's total tenant payment
Section 8 LMSA with HUD-insured or HUD-held mortgages [24 CFR 886.116]	An amount up to, but no greater than, one month's total tenant payment
Section 8 provided with the sale of a HUD-owned property (Property Disposition) [24 CFR 886.315]	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 202/8 or Section 202 PAC [24 CFR 891.435]	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 202 PRAC [24 CFR 891.435]	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 811 PRAC [24 CFR 891.435]	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 238	One month's tenant rent
Section 236 with RAP	The greater of: 1) One month's total tenant payment, or 2) \$50
Section 221(d)(3) BMIR	One month's tenant rent
Rent Supplement	The greater of: 1) One month's total tenant payment, or 2) \$50

Effective Dates of Changes in Assistance Payment, Total Tenant Payment, and Tenant Rent

Timely Completion of Recertification Process -

Timely completion of the recertification process occurs when all steps in Figure 7 - 3 are completed prior to the tenant's recertification anniversary date. Timely completion includes issuing the required 30 - day notice of a rent change and timely delivery of the three reminder notices . 120 days, 90 days, 60 days

Timely Tenant Response, But Short Processing Time - The

owner fail to complete the verification process in time to give the tenant a 30-day advance notice of a rent increase, the tenant's rent increase may not take effect until the 30-day rent increase notice period has expired. The HAP change, however, will be effective on the recertification anniversary date. If the tenant's rent is decreasing, no 30-day advance notice is required.

Late Response/Processing of Recertifications -

- Delays in processing due to owner or third-party action.
- Delays in processing due to late tenant response
- Tenant responds after recertification anniversary date. Tenant is out of compliance.
- Extenuating circumstances when tenant is out of compliance.
- Effective date of TTP/tenant rent, assistance, recertification anniversary when extenuating circumstances were present

Effective Date of Interim Recertifications

Rent Decreases	Effective first day of following month
Rent Increases	1 st of month following 30 - day Notice

Unit Transfers

Determining Whether a Unit Transfer Should Occur

- If a tenant reports a change in family composition, the owner must do the following: Determine appropriate unit size, Determine whether a transfer is required.

Transfer Requirements - When an owner determines that a transfer is required, the Model Lease for Subsidized Programs states that the tenant:

- a. May remain in the unit and pay the HUD - approved market rent; or
- b. Must move within 30 days after the owner notifies the family that a unit of the required size is available within the property.

Written Policies - Owners are required to describe the unit transfer policies in a written tenant selection plan for the property, and address the following topics:

1. Transfer waiting lists;
2. Acceptable reasons for transfers;
3. Procedures for filling vacancies; and
4. Owner's policy for establishing priority for filling vacant units with either tenants awaiting transfers or applicants from the property waiting list.

Gross Rent Changes

Key Requirements

- A. A gross rent change may occur due to a rent change only, a change in the utility allowance only, or due to a change in both the rent and utility allowance.
- B. Owners must comply with the tenant comment and posting procedures described in the Code of Federal Regulations at 24 CFR 245.
- C. Owners must submit approved gross-rent changes through their software package to the Contract Administrator or to TRACS.

D. Owners must provide the tenant a new HUD- 50059 - A reflecting all changes in rents, utility allowances, total tenant payment, tenant rent, and assistance payments.

E. A copy of the HUD - 50059 - A reflecting any change in the tenant rent, utility reimbursement, total tenant payment or assistance payment must be placed in the tenant file.

F. Tenants need only sign and date the HUD - 50059 - A if the gross rent change results in a change in the amount of rent the tenant is required to pay or in the utility reimbursement the tenant will receive. Owners must sign and date the HUD - 50059 - A.

Security Deposits for Tenants Transferring to Another Unit

When a tenant transfers to a new unit, an owner may:

Transfer the security deposit; or Charge a new deposit and refund the deposit for the old unit.

Effective Dates of Changes in Assistance Payment, Total Tenant Payment, and Tenant Rent

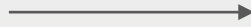
Timely completion includes issuing the required 30 - day notice of a rent change and timely delivery of the three reminder notices prior to the tenant's recertification anniversary date. 120 days, 90 days, 60 days



Review

Effective Date of Interim Recertifications

Rent Decreases



Effective first day of
following month

Rent Increases



1st of month following
30-day Notice

Unit Transfers

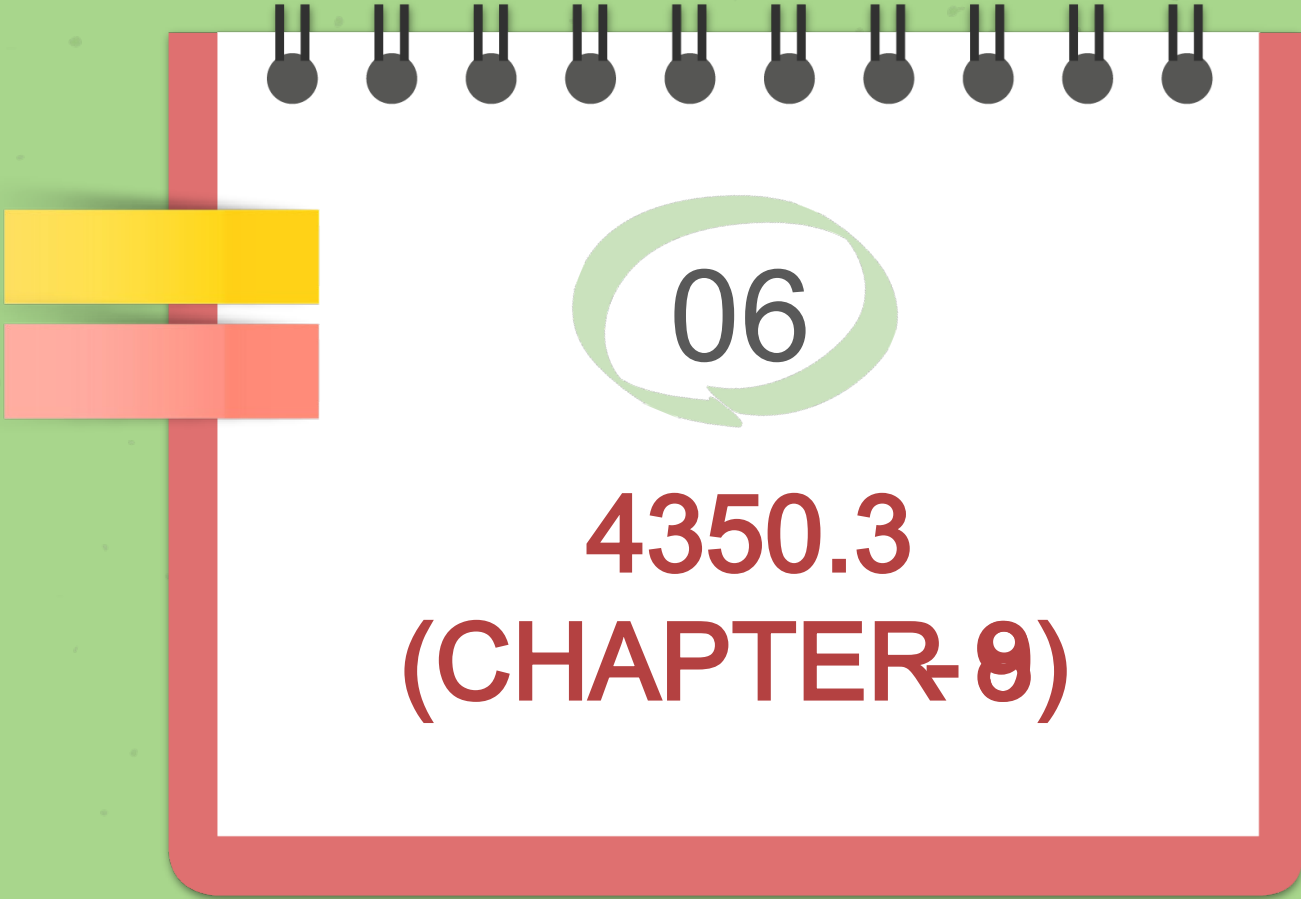
If a tenant reports a change in family composition, the owner must determine appropriate unit size and determine whether a transfer is required.



Gross Rent Changes

A gross rent change may occur due to a rent change only, a change in the utility allowance only, or due to a change in both the rent and utility allowance. When a gross rent change is completed, the property must provide a certification documenting the changes to all residents.





06

4350.3
(CHAPTER 9)

Reimbursement to HUD for Overpayment of Assistance

Tenant's Obligation to Repay - The tenant must reimburse the owner for the difference between the rent the tenant should have paid and the rent he/she was actually charged, if the tenant:

- a. Fails to provide the owner with interim changes in income or other factors;
- b. Submits incorrect information on any application, certification, or recertification;

- c. *Fails to report income received*, and
- d. As a result, is charged a rent less than the amount required by HUD's rent formulas.

If the tenant does not pay in full, an owner should enter into a repayment *agreement* with the tenant to collect these funds over a specific period of time. A tenant must reimburse the owner for the total overpayment back to the *time overpayment of assistance started, not to exceed the 5 - year limitation that the tenant was receiving assistance

Owner's Obligation to Repay -

The owner is not required to reimburse HUD **immediately** for overpayments of assistance where the overpayment was caused by the tenant's submission of incorrect information. Repayments are required when and as tenants repay in accordance with an agreed-upon repayment agreement.

Owners may only retain an amount to cover their actual costs, which is the lesser of:

- (1) Their actual costs, or
- (2) 20 percent of the amount received from the tenant.



Tenant Repayment Options

Tenants can repay amounts due:

1. In a lump sum payment; or
2. By entering into a repayment agreement with the owner; or
3. A combination of 1 and 2, above.

Tenants who do not agree to repay amounts due in accordance with a above, will be in noncompliance with their lease agreement and may be subject to termination of tenancy.

Repayment Agreements

The tenant and owner must both agree on the terms of the repayment agreement.

1. Monthly Payment - The tenant's monthly payment must be what the tenant can afford to pay based on the family's income. The monthly payment plus the tenant's total tenant payment (TTP) at the time the repayment agreement is executed should not exceed 40 percent of the family's monthly adjusted income.

2. Repayment Time Period - The time period for repayment by the tenant of the amount owed.

Owners must not apply a tenant's monthly rent payment towards the repayment amount owed that would result in an accumulation of late rent payments. The monthly payment due on the repayment agreement is in addition to the tenant's monthly rent payment.*

EIV Rules of Behavior (ROB)

With EIV System Access ROB Requirements - All EIV users who have access to the EIV system must adhere to the EIV ROB signed at the time of requesting access to the EIV system. Instructions for requesting access to the EIV system for both internal HUD users and external users are posted on the Multifamily EIV website.

External users - ROB must be kept on file along with the owner approval letters

Internal users - ROB will be kept on file by the TRACS/EIV Security Officer

Each HUD Program Center and Contract Administrator must have at least two staff members with access to the EIV system who can provide other staff members with EIV reports used for monitoring purposes.

Without EIV System Access ROB

Requirements - Owner and management agent staff, service bureau staff, HUD staff and CA staff who do not have access to the EIV system but who view or use EIV data/reports provided by authorized EIV Coordinators or EIV Users in order to perform their job functions, must adhere to the EIV ROB posted on the Multifamily EIV website.

The ROB must be signed and kept on file. Upon request, the signed ROB must be made available to the entity monitoring EIV system compliance.

*Enterprise Income
Verification

Reimbursement to HUD for Overpayment of Assistance

Tenant's Obligation to Repay _____ - The tenant must reimburse the owner for the difference between the rent the tenant should have paid and the rent he/she was actually charged.

Owner's Obligation to Repay _____ - The owner is not required to reimburse HUD immediately for overpayments of assistance where the overpayment was caused by the tenant's submission of incorrect information.



Tenant Repayment Options

Tenants can repay amounts due in a lump sum payment or repayment agreement or both.

Repayment Agreements

The tenant's monthly payment must be what the tenant can afford to pay based on the family's income. The monthly payment due on the repayment agreement is in addition to the tenant's monthly rent payment.



EIV Rules of Behavior (ROB)

With EIV System Access ROB

Requirements- External users-

Owner, Internal users- TRACS/ EIV

Security Officer

Without EIV System Access ROB

Requirements- who view or use EIV data/reports provided by authorized EIV Coordinators or EIV Users in order to perform their job functions



Review